Per Curiam

SUPREME COURT OF THE UNITED STATES

0DURE *v.* FEDERAL ELECTION COMMISSION

ON PETITION FOR INHERENT REVIEW

No. 26–2. Decided April 5, 2026

PER CURIAM.

The Federal Election Commission (FEC) issued "Notice V" (Notice) during the March 2026 mid-term election cycle. That notice generally requires equal time and fair coverage for political candidates on media programs. The notice mandates media program hosts to record time in order to achieve the FEC's equal time and coverage goal. To ensure compliance, media programs covering candidates must report the coverage time to the FEC. And the FEC generally forbids candidates from using media resources in their campaigns that are owned or managed by that candidate.

On March 10, 2026, Petitioner 0dure filed a petition in this Court challenging the notice and regulations. The petition invokes the jurisdiction we expounded in *In re Forfeiture of Congressional Seats*, 1 U. S. ___ (2025). Petitioner begins by saying that the FEC enjoys broad immunity. See Amdt. 12. But he essentially says that doesn't matter, and the Court should see through it. The thrust of the petition is the First Amendment. Petitioner first says that the notice and regulations are subject to strict scrutiny, the toughest standard of judicial review. Next, Petitioner asserts that the notice and regulations do not survive strict scrutiny. Thus, and finally, Petitioner says the notice and regulations violate the First Amendment.

Because of the unusual nature of the petition, we construe the petition as a jurisdictional statement for procedural purposes.

We decline to exercise the jurisdiction Petitioner asks us to use. In the cases relating to this jurisdiction, this Court has cautioned its utilization. We have said that such

jurisdiction "should be wielded lightly" and that judicial "restraints imposed by various doctrines remain ever important to consider." *In re Forfeiture*, 1 U. S., at ___ (2025) (slip op., at 4) (citation modified). We practice judicial restraint here. The present case asked us to intervene during the "volatile season of an election." *Trump* v. *Anderson*, 601 U. S. 100, 118 (2024) (Barrett, J., concurring in part and concurring in the judgment) (citation modified). In doing so, Petitioner jumped the gun, despite many weighty legal facts and considerations unclear. Just as an example, the petition touches just the bare bones of the FEC's immunity. We lack the benefit of lower court percolation to consider this complicated issue. The Court has scant briefing and absolutely no record to base an opinion on. We do not see any reason why this challenge to the FEC cannot be brought first in the District Court.

Out of respect for the case or controversy clause and our lower court colleagues, we decline to exercise the jurisdiction sought after. The petition is therefore denied.

It is so ordered.

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JUSTICE FEELINGS, with whom THE CHIEF JUSTICE joins, concurring.

I

One of my greatest regrets in creating the powers of inherent review afforded to this court, in writing the majority opinion in *In re Forfeiture of Congressional Seats*, 1 U.S. ___ (2025), is that the power was not tailored narrowly enough. The power, as a practice of judicial restraint (which is preached in our opinion here, and was addressed in the previous) ought only to be used where it has been balanced against two other factors.

First, the Court must assess what the actual likely harm would be. While the case presented to us now does present significant risk of harm, particularly to the First Amendment rights of various persons, this is only one aspect which must be measured. Second, the Court must ascertain which 'traditional' resolution methods are available to the aggrieved parties. Certainly, here, there has been no attempt to resolve the matter in the District Court—instead jumping directly to the Supreme Court for relief.

The Court performs a careful balancing act between these two factors, in addition to ensuring the presence of the two factors JUSTICE SAICHARI outlined while concurring in *In re Forfeiture*, when assessing whether to proceed with the exercise of the powers of inherent review. If the harm is so great as to prevent the availability of other resolution procedures from being effective, it may be wise for the Court to exercise its power. The inverse holds similarly, where other resolution procedures may overwhelm any harm that

may be done, and require that this Court exercise its restraint.

II

Importantly, the Federal Election Commission is afforded broad immunity by the Twelfth Amendment of the Constitution against any sort of judicial review, except where they have themselves waived that immunity. This immunity extends, however, only to official acts. Our real life counterpart has helpfully already discussed what is and what is not an official act.

In deciding what is an official act, we ought to defer to their holding. Official acts extend to the "outer perimeter" of that body's official responsibilities. *Trump v. United States*, 603 U. S. 593, 610 (2024). That outer perimeter covers all actions which are not "manifestly or palpably beyond [their] authority." *Id.*

In order to assess whether the Federal Election Commission is entitled to immunity from judicial review in this action, we must determine whether the regulation at issue here constitutes an official act pursuant to the test established in *Trump*.

The Commission is a constitutional actor—one written into the Constitution by those persons at the convention in order to ensure that its role in our government was clearly defined. As such, it is limited to the scope of its constitutionally-granted authority. Despite being an organ of group management, and under their direct supervision, the Commission does not possess any extraordinary powers simply as a result of their alignment there. The core functions of the Commission are "the regulation and administration of primary, general, and special elections." Twelfth Amendment, U.S. Constitution.

Notice V, the regulation in contention here, does not appear to fall within that scope. Instead, Notice V attempts to promulgate regulations which are imposed upon businesses. The nature of the business does not matter in

this instance, though Petitioner is helped in the fact that the effect of the Notice likely violates the First Amendment. Because the regulation of commerce is a function which is reserved to the political branches, and no grant of authority to intervene has been constitutionally or statutorily afforded to the Commission, it is impossible that Notice V constitutes an official act. As such, there is no immunity here.

* * *

Despite their lack of immunity and clear unconstitutionality of their actions in issuing Notice V, it is proper at this juncture to decline to exercise our authority and to refer the matter to a lower Court, if the petitioner would like to pursue that matter. Without exercising this kind of restraint with respect to our powers of inherent review, we risk imposing the judicial branch as a superior, rather than co-equal, branch of the government.

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JUSTICE SAICHARI, concurring.

On March 11, 2026, this Court received a Petition for the exercise of inherent review pertaining to a multitude of legal questions with respect to the Federal Election Commission. The Petition itself contains five questions, which themselves could be divided into three. While this court appreciates the thorough number of authorities and arguments, having five separate questions to answer against the FEC is annoying, and, to be frank, there are very few people who will read a long Opinion in RxUSA.

In re Forfeiture of Congressional Seats, 1 U. S. ___ (2025) establishes the authority by which this Court may review, at will, a law, rule, or regulation, without case or controversy. It is an extraordinary authority and its citation must be exacting. In *In re Forfeiture*, I laid out a two step standard by which I believed that this authority should be exercised—when (1), the the constitutional structure faces a clear and compelling threat, and (2) Court's intervention is narrowly tailored to remove that threat and no more. With the number of questions presented to this Court, the latter half of this standard cannot be reasonably satisfied with the exercise of inherent review authority. However, given the nature of FEC Notice V and its restriction of a free press, it is reasonable that, as matter of law, the constitutional structure—specifically the liberties guaranteed by the Bill of Rights, are under threat. Given that this standard is unsatisfied, I do not see any reason why this should not have been brought to the District Court first as a civil suit as constitutional controversy. However, the District Court would have been unable to provide adequate remedy. It is perhaps

providential though that this has been brought before the Supreme Court to demonstrate why.

Although the Court declines to exercise jurisdiction, the Petitioner's first three constitutional questions are sufficiently clear that it bears brief explanation.

The Federal Election Commission, in real life, exists as an independent agency responsible for the disclosure of campaign finance information, to enforce the provisions of the law such as the limits and prohibitions on contributions, and to oversee the public funding of Presidential elections, See 52 U.S.C. § 30106 (2018). For RxUSA, the Federal Election Commission is responsible for the regulation and administration of primary, general, and special elections, See U.S. Const. Amend. XII. It is notable that it is not granted any authority whatsoever by the Constitution to make any sort of regulations pertaining to speech or publications of private entities like the press.

Notice V provides, "Candidates running for election must receive fair equal time in all aspects of media coverage. When a candidate is included in voice program, or any program. A program host is responsible for time keeping speaking time and providing equal time to another political candidate. This must be reported to the Federal Election Commission upon completion of a program who will ensure fair equal time compliance. No candidate may directly or indirectly use media resources owned, managed or otherwise operated by the candidate to post about their candidacy at an election. Further instructions will be posted and applied at the discretion of the Commission." This mandate is a direct command as to how private speakers must structure and present their speech under the guise of neutral regulation.

While the press is certainly involved in elections with candidate coverage, the Commission's authority to regulate elections rests solely in the elections process itself, and in the speech of candidates themselves. It is the prerogative of a news corporation, as a private entity, that it may provide

coverage of candidates as it sees fit. See *Miami Herald Publ'g Co. v. Tornillo*, 418 U.S. 241 (1974). Additionally, as matter of law, the Constitution does not confer upon political candidates a right of access to privately controlled media platforms See *Columbia Broad. Sys., Inc. v. Democratic Nat'l Comm.,* 412 U. S. 94 (1973). By requiring program hosts to allocate "equal time" and to affirmatively structure their coverage around candidate parity, the Commission substitutes its own judgment for that of private speakers as to what content should be produced and how it should be presented. It is contrary to the fundamental liberty of a free press. The United States was founded upon the principles of liberty, and a free—if at times unfair or biased—press, a principle recognized as early as the acquittal in the Trial of John Peter Zenger (1735). This understanding is consistent with Blackstone's observation that the liberty of the press consists in freedom from prior restraint, See *1 WILLIAM BLACKSTONE, COMMENTARIES *151–52.* If candidates themselves do not have the right to demand political advocacy from private corporations—why is it that the corporations are mandated by a quasi-governmental agency to do as such? The First Amendment's protections do not diminish when the speaker is a corporation; to the contrary, corporate political expression lies at the core of protected speech. *See Citizens United v. FEC*, 558 U.S. 310 (2010). Finally, the Commission's assertion that "further instructions will be posted and applied at the discretion of the Commission" reflects an open-ended, *ultra vires* claim of regulatory authority over speech untethered to any constitutional limit. This is not regulation of elections—it is control of speech, it is control of discourse, it is tyranny. It is glaringly obvious that the Commission's Notice V is unconstitutional, and creates a very slippery slope as to what actually applies as being relevant to elections in what can and cannot be regulated. Even setting aside the concerns identified herein, a more fundamental limitation remains.

Alas, while it is impermissible and unconscionable that the Federal Election Commission regulates a free, albeit unfair press, the aforementioned only applies as matter of law. The Federal Election Commission's actions are undoubtedly unconstitutional. The FEC, constitutionally, is supposed to regulate elections and elections alone—not impose restrictions upon the speech of private press entities. They're not candidates. This is very clear from the intent of the Framers—I would know because I was there. However, the reality is, that the Federal Election Commission, is an arm of Group Management, it is not part of the government. Not the General Services Administration—which itself is also an arm of Group Management, but the FEC is specifically under Group Management *See* U.S. Const. Amend. XII.

Group Management is under the control of one individual, one sole proprietor—AudaciousMaverick. Group owners, like Audacious, may remove any individual player from their Roblox Group, at will. Such additionally applies to the Discord, which serves in effect as a public square. Like a property owner, AudaciousMaverick may remove individuals from the Discord at will and without consequence. It is his prerogative. Ironically, the argument that can be made against the FEC—that there is an imposition on private entities, can be extended to RxUSA outside of the LARP. RxUSA (1) has an organized managerial structure under a sole proprietorship; (2) has organizational roles such as specialist, junior department administrator, senior department administrator, executive director, and administrator; (3) has gamepasses with the express intention of generating revenue, alongside Roblox's own player retention payout algorithms; (4) possesses centralized control through Group Management and ultimately AudaciousMaverick, and (5); has and continues to police its games, utilizing the Digital Millennium Copyright Act. Thus, RxUSA bears the hallmarks of, and reasonably functions as, a private enterprise. This is not to

say it is not a Ro-Nation, because it is, but RxUSA like most Groups is functionally a business.

Therefore, Group Management is entirely within its bounds to regulate the speech permitted within its platform, and Group Management is under no obligation to provide a platform for speech in general. See *Manhattan Cmty. Access Corp. v. Halleck*, 587 U.S. ___ (2019); *Hudgens v. NLRB*, 424 U.S. 507 (1976); *Lloyd Corp. v. Tanner*, 407 U.S. 551 (1972). This includes the authority to decline to host or facilitate speech it does not wish to promote. *See 303 Creative LLC v. Elenis*, 600 U. S. ___ (2023). Thus, the FEC, as an arm of Group Management, may regulate the speech of the press within the Group, including by requiring equal coverage during elections, because it operates under the direct control of the private enterprise that owns the platform and exercises the same authority to structure speech within that private space. See *Hudgens v. NLRB*, 424 U. S. 507 (1976). Additionally, and perhaps more importantly, is that the Judiciary does not have the authority to exercise judicial review over the actions of Group Management. Group Management has explicitly expressed that the FEC is immune from litigation, and the Constitution explicitly provides that the FEC is not subject to judicial review unless it waives immunity *See* U.S. Const. Amend. XII. The FEC has not waived its immunity and continues to exercise its immunity.

To reiterate, it is impermissible and unconscionable that the Federal Election Commission regulates a free, albeit unfair press as matter of law. Notice V creates a slippery slope wherein the FEC may regulate what does and does not apply to elections *ultra vires*. Notice V is flagrantly unconstitutional as a matter of First Amendment doctrine. However, this Court, and by extent the District Court lacks the authority to review or invalidate the actions of Group Management, and inherent review cannot be extended to reach actors beyond jurisdiction. The violation is clear; the remedy is not within this Court's power.